

Bihar Electricity Commission (Standards of Performance of Intra Transmission Licensees) Regulations, 2019

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Bihar Electricity Commission (Standards of Performance of Intra Transmission Licensees) Regulations, 2019

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Bihar Electricity Commission (Standards of Performance of Intra Transmission Licensees) Regulations, 2019

Rule

BIHAR-ELECTRICITY-COMMISSION-STANDARDS-OF-PERFORMANCE-OF-INTRA-TRANSMISSION-LICENSEES-REGULATIONS-2019 of 2019

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Bihar Electricity Commission (Standards of Performance of Intra Transmission Licensees) Regulations, 2019

Published vide Notification No. BERC-SMP-18/2019-04, dated 10.10.2019

Last Updated 10th February, 2020

No. BERC-SMP-18/2019-04. - In exercise of powers conferred under Section 181 (za) read with section 57 (1), 57 (2) and 86 (1) (i) of the Electricity Act, 2003 (36 of 2003) and all other powers enabling it in this behalf, the Bihar Electricity Regulatory Commission hereby makes the Bihar State Electricity Regulatory Commission (Standards of Performance of Intra Licensees) Regulations, 2019:

Chapter 1

Preliminary

1.

Short title, Extent and Commencement.

(1)

These Regulations may be called the Bihar Electricity Commission (Standards of Performance of Intra Transmission Licensees) Regulations, 2019.

(2)

These regulations extend to the whole of the state of Bihar.

(3)

These regulations shall come into force from the date of their publication in

2.

Scope.

- These regulations shall be applicable to all the Intra Transmission licensees.

3.

Definitions.

(1)

In these Regulations, unless the context otherwise requires:-

(a)

"Act" means the Electricity Act, 2003 (36 of 2003) a from time to time.

(b)

"Affected person" means a user of the intra-State transmission system who is affected due to non-adherence to the Standards of Performance specified in these regulations by the intra-State transmission licensee.

(c)

"Commission" means the Bihar Electricity Regulatory Commission referred to in sub- section (1) of section 82 of the Act.

(d)

"Intra-State Transmission System (InSTS)" shall have the same meaning as defined in Section 2 (37) of the Act.

(e)

"Intra-State Transmission Licensee" means a licensee including a deemed intra- State transmission licensee authorized to establish, operate and maintain transmission lines of the intra- State Transmission System.

(f)

"User" means a user of any segment/ element of the intra-State Transmission System and shall include all generators, State Transmission Utilities, Discoms or load serving entities directly connected to the intra-State Transmission System including Bulk Consumers and any other entity/ person.

(g)

"Year" means a financial year.

(2)

Words and expressions used in these regulations and not defined herein but defined in the Act or any of the regulations made by the Commission, shall have the meanings as assigned to them respectively in the Act, and regulations made by the Commission from time to time.

Chapter 2

Objective, Norms and Methodology

4.

Objective.

- The objectives of these regulations are to ensure compliance of the Standards of Performance by the intra-State transmission licensees and to provide for an efficient, reliable, coordinated and economical system of electricity transmission, non-adherence of which would entitle the affected parties to compensation.

5.

Standards of Performance.

(1)

All intra-State transmission licensees shall comply with the Standards of Performance specified in these regulations:

(a)

Transmission System Availability

(i)

The transmission system availability shall be calculated element-wise on monthly basis, in the manner as provided in the Bihar Electricity Regulatory Commission (Multi Year Transmission Tariff and SLDC Charges) Regulations, 2018, as amended from time to time and any subsequent enactment thereof.

(ii)

The deemed availability of the transmission elements under outage shall be as Specified in the Bihar Electricity Regulatory Commission (Multi Year Transmission Tariff and SLDC Charges) Regulations, 2018, as amended from time to time and any subsequent enactment thereof.

(iii)

The element-wise monthly availability of the transmission system shall not be below the availability as given under:

Sl. No.

Transmission Elements

Availability (% of time)

(i)

AC Transmission line

90

(ii)

ICTs

90

(iii)

Reactors

90

(iv)

Static VAR Compensator

90

(v)

Series Compensator

90

(vi)

HVDC (Back-to-back Stations and bi-pole links)

85

Notes. - (1) Tower collapse shall not be counted for the purpose of calculation of monthly availability of AC transmission line and HVDC bi-pole line.

(2)

Failure of Inter-Connecting Transformer (ICT) and Reactor shall not be counted for the purpose of calculation of availability of Inter-Connecting Transformer and Reactor.

(iv)

The element-wise monthly availability shall be certified by the SLDC or Member Secretary of the State Power Committee.

(b)

Restoration time. - Restoration time for different types of failures of transmission line and Inter-Connecting Transformer (ICT) and reactors shall not exceed the following time limit:

Sl. No.

Types of failures

Restoration Time (Days)

1.

Insulator failure

Plain Terrain

1

Hilly Terrain

2

2.

Tower after collapse by Emergency Restoration

System (ERS)

12

3.

Tower after collapse

Plain Terrain

30

River Bed

50

Hilly Terrain

50

4.

Snapping of phase conductor

Plain Terrain

2

Hilly Terrain

3

5.

Failure of earth wire

Plain Terrain

2

Hilly Terrain

3

6.

Failure of Inter Connecting Transformers (ICTs)

Restoration of the failed ICT

120

7.

Failure of Reactors

Restoration of the failed reactor

120

6.

Any failure by the intra-State transmission licensee to maintain the standards of performance specified in these regulations shall render the said licensee liable to payment of compensation to an affected person claiming such compensation under the provisions of the Act.

Provided that the payment of compensation by the Intra-State transmission licensee shall be without prejudice to any penalty, which may be imposed or any prosecution which may be initiated by the Commission as provided in the Act.

7.

Methodology for compensation.

- An affected person who has suffered a loss on account of non-adherence to the Standard of Performance by any intra-State transmission licensee may make an appropriate application to the Commission for award of compensation:

In case of non compliance of the order/ direction passed by the commission, proceeding u/s 142 of Electricity Act, 2003 will be initiated.

Provided that the Commission shall determine the compensation after giving reasonable opportunity to the transmission licensees of being heard:

Provided further that the compensation to be paid by the intra-State transmission licensee to the affected party shall be limited to the transmission charges as determine by the commission in the Tariff order from time to time.

Provided further that the intra-State transmission licensee shall not be entitled to recover the amount of compensation

awarded through tariff from the users of the transmission of electricity:

Provided also that no claim for compensation shall be entertained if the application for the claim is filed after expiry of a period of ninety days from the end of the month when the availability of the transmission system falls short of the availability specified in Clause 5 (a) and ninety days from the date of restoration of transmission element, as the case may be, for the standards prescribed in Clause (b) of Regulation 5 of these regulations.

Chapter 3

Information to be Furnished by the Intra-State Transmission licensees

8.

Information to be furnished by the intra-State Transmission Licensees.

(1)

All intra- State transmission licensees, in accordance with section 59 of the Act, shall furnish to the Commission, (a) the level of performance achieved, and (b) the number of cases in which compensation was paid, and (c) the aggregate amount of the compensation, in the formats in the Schedule of these regulations.

(2)

Such information in the requisite formats shall be submitted to the Commission twice during the financial year, on six monthly basis by 31st October and 30th April for the periods April to September and October to March respectively.

(3)

All intra-State transmission licensees shall display on their websites the actual performance against the specified Standards of Performance on a monthly basis and the aggregate amount of compensation paid, if any, in the formats enclosed in the Schedule.

Chapter 4

Miscellaneous

9.

Power to Relax.

- The Commission may, if it considers necessary or expedient to do so and for the reasons to be recorded in writing, relax adherence to any specific Standard of Performance during Force Majeure conditions such as war, mutiny, civil commotion, riot, flood, cyclone, Storm, lightning, earthquake, grid failure, and strike/curfew, lockout, fire affecting the intra-State Transmission Licensee's installations and operation activities, or under such other specific circumstances:

Provided that the Intra-State Transmission Licensee shall not be discharged from its liability on account of its failure to maintain the Standards of Performance under these regulations if such failure can be attributed to the negligence or deficiency or lack of preventive maintenance of the intra-state transmission system or failure to take reasonable precaution which has resulted in loss to the affected person.

10.

Power to remove difficulties.

- If any difficulty arises in giving effect to any of the provisions of these Regulations, the Commission may, by general or specific order, make such provisions not inconsistent with the provisions of the Act, as may appear to be necessary for removing the difficulty.

11.

Power to Amend.

- The commission may, at any time after consultation with the licensees and other persons likely to be affected add, vary, alter, modify or amend any provisions of these regulations.

Schedule

I. AC Transmission Line/ ICT/ Static VAr Compensator/ Series Compensator/ HVDC (Back-to-Back Stations and Bi-Pole Links)/ Line Reactors/ Bus Reactors Outage Details for the month of _____

Element Name

Outage

Restoration

Duration of Outage Attributable to

Reason of Outage

% Availability

Date Time

Date Time

Intra-State Transmission Licensee

Others

System constraint/ Natural calamity/ Militancy

Deemed Available

Reason of Outage

Hrs:Min

Hrs:Min

Hrs:Min

Hrs:Min

II. Elements where restoration time has exceeded the standards specified in Regulation 5 (b).

Element Name

Restoration time as specified in Regulation 5 (b)

(in days)

Actual restoration time (in days)

III. Details of compensation paid by the intra-State transmission licensee

Element Name

Violation of Regulation 5 (a)

Violation of Regulation 5 (b)

Compensation paid (in Rs.)

% Availability prescribed

Actual % Availability

Restoration time prescribed (in days)

Actual restoration time (in days)

Total

IV. Data to be furnished by the intra-State Transmission Licensees to SLDC

(1)

The Dependability Index defined as $D = N_c / (N_c + N_f)$

Where N_c is the number of correct operations during the given time interval and N_f is the number of failures to operate at internal power system faults

(2)

The Security Index defined as $S = N_c / (N_c + N_u)$

where N_u is the number of unwanted operations.

(3)

The Reliability Index defined $R = N_c / (N_c + N_i)$

where N_i is the number of incorrect operations and is the sum of N_f and N_u .

(4)

From above $1/S + 1/D = 1/R + 1$

(5)

The number of trippings of each transmission element. Five or more trippings of a transmission element in a month to be put on the website by the intra-State Transmission Licensees and reported to the Commission by SLDC

Note. - 1. The data for these indices are presently prescribed for collection by the System Operator.

2. These indices shall be computed by the SLDC and furnished to the Commission on monthly basis.

V. Data to be compiled by the intra-State Transmission Licensees

The restoration times for different types of failures of a transmission line and failure of Inter-Connecting Transformer (ICT) and reactor in the following format:

Sl. No.

Types of failures

Restoration Time (Days)

A.

Elements of the Transmission line for Single

Circuit (S/C), Double Circuit (D/C) and Multi-Circuit (M/C)
towers for each KV class separately

1.

Insulator failure

Terrain type

Plain

River bed

Hilly

(i) Insulator failure in single phase

(ii) Insulator failure in two phases

(iii) Insulator failure in three phases

2.

Tower after collapse by Emergency Restoration

System (ERS) for S/C, D/C and M/C separately

3.

Tower after collapse without Emergency

Restoration System (ERS) for S/C, D/C and M/C separately

4.

Tower damage (not collapse)

One arm damage

Two arms damage

5.

Snapping of phase conductor

Conductor snapping in single phase

Conductor snapping in two phases

Conductor snapping in three phases

6.

Failure of earth wire

7.

Insulator failure with conductor snapping

8.

Any other combination of failures

B.

Elements of the sub-station for each kV class
separately

1.

Failure of Inter Connecting Transformers
(ICTs)

Restoration of the failed ICT

Other major failures in ICTs

Single phase unit

Three phase unit

(i) Replacement of faulty bushings

(ii) Replacement of failed/ blasted bushings

(iii) Replacement of faulty tap changers

2.

Failure of Reactors

Restoration of the failed reactor

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